

The Bengal Police-Powers of Tahsildar Regulation, 1831

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State of Uttar Pradesh - Act

The Bengal Police-Powers of Tahsildar Regulation, 1831

UTTAR PRADESH

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The Bengal Police-Powers of Tahsildar Regulation, 1831

Act 11 of 1831

Published on 1 November 1831

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The Bengal Police-Powers of Tahsildar Regulation, 1831

(Bengal Regulation No. 11 of 1831)

[Passed by the Governor-General in Council on the 1st November, 1831]

Regulation for vested Tahsildars in certain cases with the Powers of Police Officers.

1.

Preamble.

- [* * *]

[The words 'whereas by Reg. IV, 1821, the Collectors of land revenue or other persons exercising their powers are, in certain cases authorized to perform the duties of Magistrates' and repealed by Act XII of 1891.]

Whereas with a view to improve the efficiency of the police, it is expedient that, in districts of the Ceded and Conquered [Provinces]

[The word 'Provinces' shall stand unmodified vide A.L.O. 1950.]

in which tahsildari establishments are maintained subject to the authority of the Collectors, the [State Government]
[Substituted by the A.L.O. 1950 for 'Provincial Government' which had been Substituted by the A.L.O. 1937, for Governor-General in Council.]

be empowered, by [orders]

[Substituted for 'an order in Council' by the A.L.O. 1937.]

to vest the tahsildars with the powers at present exercised by daroghas of police [* * *]

[The words 'and whereas it is expedient to modify the existing Reg. repealed the removal of police officers' repealed by Act XII of 1891.]

the following rules have accordingly been enacted, to be in force from the date of their promulgation throughout the [Provinces]

[The word 'Provinces' shall stand unmodified vide A.L.O. 1950.]

aforesaid.

2.

[State Government may authorize tahsildar to exercise powers vested in police daroghas, etc. [[For subordination of daroghas of police to tahsildars, see XVI of 1954, which reads as follows:-

'wherever any tahsildar shall have police jurisdiction under the provisions of Section 2 of the said Reg. XI, of 1831, every darogha of police hereafter appointed within the local limits of the police jurisdiction of such tahsildar shall be subordinate to, and subject to the control of, such tahsildar, in his capacity of chief police thanedar'.]]

- It shall be competent to the [State Government] by [order]

[Substituted for 'an order in Council' by the A.L.O. 1937.]

to authorize any tahsildar or tahsildars to exercise the powers vested by the existing Regulations in daroghas of police and to determine the local limits of their police jurisdictions within which all officers of police, including the present thana and village-police-establishments, shall be subordinate to, and subject to the control of, the tahsildar, in his capacity of chief police thanedar.]

3.

[Daroghas to the designed Naib-daroghas.] - Repealed by Act XVI of 1854.

4.

[Modification of Bengal Reg. XX of 1817.] - Repealed by Act XII of 1876.

5.

Tahsildars vested with powers of daroghas may employ chaprasis, etc., on fixed tahsildari establishments.

- The tahsildars who may be vested with the powers of daroghas under this Regulation are authorized to employ, when necessary, in aid of the regular police-establishments, any chaprasis or other persons entertained on their fixed tahsildari establishments; and revenue officers, when so employed, shall be guided in the discharge of their police duties by all the rules now in force, or which may hereafter be enacted, for guidance of the police officers.

But the fixed thana-establishments shall not be employed in the collection of the land revenue, or in other revenue-duties, except in cases of distraint for arrears of rent or revenue, or such other occasions as by the Regulations in force is now authorized.

6.

Statement to be proclaimed in district where arrangement authorized by Regulation, is carried into effect.

- Whenever the [State Government]

[Substituted by the A.L.O. 1950 for 'Provincial Government' which had been Substituted by the A.L.O. 1937, for Governor-General in Council.]

shall see fit to carry into effect the arrangement herein authorized in any district or part of a district, a statement shall be drawn out specifying the number and extent of the several police and revenue-jurisdictions, the names and numbers of the officers attached to them, and the headquarters or thana and the outputs of the several divisions; this statement shall drawn out in English, [Hind]

[Substituted by the A.L.O. 1950 for 'Persian.']

and the vernacular dialects, and suspended in a conspicuous place in the kachahri of the Collector and Magistrate at the sadar station, and shall be published by proclamation throughout the district.

7.

[Reduction in police-establishments.] - Repealed by Act XVI of 1854.

8.

[Modification of Bengal Reg. XVII of 1816.] - Repealed by Act XVI of 1874.

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